

SCHOOL ASSIGNMENT

A. Kindergarten and/or First Grade Registration.

1. No less than thirty (30) calendar days prior to kindergarten registration, potential over-enrolled schools will send a survey to the parents/guardians of all currently enrolled students asking if they are planning to register a child for the upcoming school year in either kindergarten or first grade, or both. An introductory statement will clearly express the purpose of the survey is to provide priority registration for incoming kindergarten and first grade students with siblings already attending the school serving that family's residence.

2. If a family does not meet the criteria set forth in section A1, they will be asked to sign and date the survey and return it to the school.

3. If a family meets the criteria set forth in section A1, they will complete a section of the survey asking them to provide the name(s) of their child(ren) currently attending the school. Additionally, a space will be provided for them to supply the name and date of birth of their incoming kindergarten or first grade student. In the case of a rising first grade student, parents will also be asked to provide the name and address of the child's kindergarten provider.

4. Parents/guardians will be given a deadline of ten (10) calendar days after the survey is distributed to submit their survey to the school. Reasonable attempts will be made by the school's registrar to contact parents/guardians who have not responded by the deadline.

5. Prior to kindergarten registration, a list of all incoming kindergarten and first grade students with siblings attending the school will be compiled and a seat will be reserved at the appropriate grade level for every child on the list.

6. For kindergarten registration the number of kindergarten students with siblings plus the number of potential kindergarten retentions will be deducted from the total number of seats available and I school reassignment letters will begin to be distributed when that reduced number is reached. On the day first grade registration opens, the number of first grade students with siblings and the number of potential first grade retentions will be deducted from the total number of seats available based on the school's current kindergarten enrollment. If the current kindergarten enrollment meets or exceeds the number of first grade seats available, including retentions, then incoming first graders will be placed using LCPS I school reassignment procedures.

7. Within thirty (30) calendar days after kindergarten or first grade registration opens, parents/guardians who have not yet registered their incoming kindergarten or first grade student with a sibling attending the school, but have responded to the survey indicating they have siblings, will be contacted by the registrar

SCHOOL ASSIGNMENT

and asked if they still intend to register their child. If so, they will be given ten (10) calendar days from the date of the contact to register their child and informed that their priority seat will be forfeited at the end of the ten (10) calendar days.

B. Special Permission.

Students who live in a specific attendance area have the right to attend their assigned home school and access classes and programs that are staffed and funded based on their actual residence. Special permission to attend a school that is not the designated home school, per a student's actual residence, is a privilege, not a right.

LCPS staff will consider the guidelines below when approving, or denying, special permission requests.

1. Defining School or Grade Level Capacity.

- a. For purposes of this policy, capacity is defined at the elementary, middle and high school levels as 85% of the "building base capacity" for that school facility (excluding modulars) as indicated in the current Capital Improvement Program.

2. Approving Special Permission.

When capacity exists and is below 85%, special permission may be granted per [Policy 8155](#). The Office of Student Services will review each request. Approval will be determined in the following manner:

- a. approving the request may not result in incurring additional costs to LCPS, either in resources or staffing, and
- b. approval may not result in a school reassignment for students moving into the school attendance zone during the school year, and
- c. approval will not result in a school reassignment for the student requesting special permission.

3. Considerations for Appeals.

- a. When special permission is denied, parents/guardians may follow the appeal process per [Policy 8155](#).
- b. Appeals that do not meet the criteria for review by the Director of Students Services may be appealed directly to the School Board Committee per LCPS [Policy 2350](#), Appeal of Administrative

SCHOOL ASSIGNMENT

Decisions.

- c. The overall capacity of both the home school and the requested school will be considered for applications and appeals to schools that are projected to be at or above 85% capacity.

4. Communication to Parents.

The LCPS Office of Student Services will notify parents of current LCPS students in January and through the close of the special permission period about special permission dates and deadlines.

C. Instructional Suitability.

[Policy 8155](#) also allows families to file a request, outside of the special permission window, for their child to attend a school other than the one assigned to their address of residence within Loudoun County, for documented social and/or emotional reasons. Additionally, all conditions outlined in Section 4(d) below must be satisfied.

Transportation will not be provided if the parent/guardian requests the school change and it is determined as an optional assignment by LCPS. If a parent/guardian submits a request, LCPS will follow the procedure below to determine if placement in a school, other than the student's school of residence is required:

1. Parent notifies LCPS Office of Student Services.
2. LCPS Office of Student Services (Coordinator of Student Services) reviews request and distributes to the appropriate office.
3. The appropriate office will review the request based on the parent/guardian reasons outlined below:
 - a. Office of School Administration - Disciplinary Request or Student Safety Requests.
 - b. Student Services Office and Level Directors - Social, Emotional or Mental Health Requests.
4. The designated office will follow the process outlined below before approving parent requests per 8155 B - Instructional Suitability:
 - a. Contact the Principal of the home school and requested school.
 - b. Review capacity at requested school (both general education and

SCHOOL ASSIGNMENT

special education capacity).

- c. Review student history and current plan of support for the student.
- d. Verify that the following have been implemented or provided prior to any determination to approve the request, unless the specific request warrants immediate action:
 - (i) Student support plan has been put in place and signed by all parties;
 - (ii) Unified Mental Health Team has been notified prior to request, as appropriate and a plan has been developed to address parent/guardian concerns;
 - (iii) Parents/guardians provide evidence of social emotional, mental health, safety, or other expressed concern to include a letter from a certified mental health provider, if applicable, or other evidence justifying a relocation to the requested school;
 - (iv) Conferences with school administration have been held and documented prior to parent/guardian request to relocate;
 - (v) Other school-based alternatives have been discussed by the school-based team and the parents/guardians and/or students and implemented as appropriate; and,
 - (vi) A program is available to support the student at the requested school.

Failure to comply with the above requirements will prohibit further consideration of the school transfer request.

- e. The Director of School Administration, Level Directors, and/or Director of Student Services will review the request and documentation and determine if the request will be denied or approved or if collaboration between Administrative Offices and/or school-based administration is required before a final determination is made.

5. The designated office will notify school-based administrators and ensure a plan is in place, if appropriate

SCHOOL ASSIGNMENT

6. The designated office will notify parents of the decision and provide direction on appeal per [Policy 2350](#) if denied.

7. If a student is relocated to another school for instructional suitability, the student may be ineligible to participate in VHSL activities for 365 days. To request a waiver, parents/guardians may follow the procedure below:

- a. After receiving a special permission/instructional suitability approval, parents have 10 calendar days to submit a letter to the Director of Athletics and Extracurricular requesting a superintendent's waiver of VHSL transfer rule 28A-7-1.
- b. Parents have an additional **5 calendar days** to submit supporting documentation to the Director of Athletics and Extracurriculars.
- c. The Director of Athletics and Extracurriculars will submit the request and all supporting documents to the Chief of Schools for review and consideration. The Chief of Schools has **10 calendar days** to review the information.
- d. The Chief of Schools will notify the parents or guardians of the decision and outline the appeal process under [Policy 2350](#) in the notification, if necessary.

[Former Regulation 8-20]

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